

Superior Court of the State of California
County of Orange

TENTATIVE RULINGS
DEPARTMENT C27
JUDGE BRADLEY ERDOSI

LAW AND MOTION IS HEARD ON MONDAYS AT 2:00 P.M.

Tentative Rulings: The Court endeavors to post tentative rulings on the Court's website by 10:00 a.m. on the date of the afternoon hearing. However, ongoing proceedings or other pressing matters may delay the posting of tentative rulings. Additionally, tentative rulings may not be posted in every case. Please **do not** call the department for tentative rulings if tentative rulings have not been posted. The Court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on Tentative Rulings: If all counsel intend to submit on the Court's tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5227. Please do not call the department unless **all** parties submit on the tentative ruling. If all sides submit on the Court's tentative ruling and so advise the Court, the tentative ruling will become the Court's final ruling and the prevailing party is ordered to give notice of the ruling and prepare an order for the Court's signature, if appropriate, under Cal. R. Ct. 3.1312.

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Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings.

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TENTATIVE RULINGS**August 24, 2026**

	Case Name	Tentative
101	2023-01333212 Sampson vs. Rocha	Motion – Other Plaintiff Michelle Sampson’s motion for fees and costs is denied. These motions all suffer from the same procedural defects as the other motions Plaintiff has brought. (See e.g., 9/16/24 Minute Order, 8/19/24 Minute Order, 2/3/25 Minute Order, 3/10/25 Minute Order.) First, no proof of service was filed with the motion. (See Code Civ. Proc. § 1014, California Rules of Court, rule 3.1300(c).) Second, Plaintiff’s motion did not include a memorandum of points and authorities. California Rules of Court rule 3.1113(a) states, “A party filing a motion . . . must serve and file a supporting memorandum.” That rule further states, “The court may construe the absence of a memorandum as an admission that the motion . . . is not meritorious and cause for its denial.” (Cal. Rule Ct., rule 3.1113(a).) Finally, no legal authority is provided to support Plaintiff’s request. “Every brief should contain a legal argument with citation to authorities on the points made. If none is furnished on a particular point, the court may treat it as waived, and pass it without consideration.” (<i>People v. Stanley</i> (1995) 10 Cal.4th 764, 793). For the foregoing reasons, the motion is denied. The clerk is ordered to provide notice to all parties.
103	2025-01487584 Tung vs. Forniss	Motion to Strike Portions of Complaint Defendants Alan Forniss and Exp. Realty of California, Inc.’s motion to strike portions of Plaintiff Derek Tung’s First Amended Complaint is denied. Defendants will be provided the opportunity to respond to Plaintiff’s late opposition at the hearing should they wish, if they are unable to file a reply brief given the time constraints. While the Court has exercised its discretion to consider Plaintiff’s late opposition this time, Plaintiff is cautioned that in the future, any briefs must be timely filed or the Court may refuse to consider an untimely brief. (Cal. Rules of Court, rule 3.1300(d). Defendants move to strike Plaintiff’s request for “reasonable attorneys’ fees, where recoverable by law.” Defendants are correct in arguing that because Plaintiff is pro per, he is not entitled to attorney fees. (See <i>Trope v. Katz</i> (1995) 11 Cal.4th 274, 292 (“an attorney who chooses to litigate in propria persona and therefore does not pay or become liable to pay consideration in exchange for legal representation cannot recover reasonable attorney’s

		fees.”.) However, the Court finds Defendants’ motion unnecessary given that Plaintiff’s request in the First Amended Complaint is expressly conditioned on whether the law allows for the recovery of attorney fees. At this time, given Plaintiff’s self-represented status, he would not be able to recover attorney fees. Plaintiff’s prayer for relief as currently pled does not change the analysis. Plaintiff is ordered to give notice.
107	2023-01351239 Harris vs. Shops at Mission Viejo, LLC	1. Motion for Summary Judgment and/or Adjudication 2. Motion for Summary Judgment and/or Adjudication (1) MOTION FOR SUMMARY JUDGMENT Defendant Welltower Mission Viejo Medical Center JV, LLC’s (“Welltower”) motion for summary judgment as to Plaintiff Gina Harris’ First Amended Complaint (“FAC”) is denied. “[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (<i>Id.</i> at p. 851.) A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) The scope of this burden is determined by the allegations of the plaintiff’s complaint. (<i>FPI Development v. Nakashima</i> (1991) 231 Cal.App.3d 367, 381-382 [pleadings serve as the outer measure of materiality in a summary judgment motion]; <i>580 Folsom Associates v. Prometheus Development Co.</i> (1990) 223 Cal.App.3d 1, 18-19 [defendant only required to defeat allegations reasonably contained in the complaint].) Defendant Welltower moves for summary judgment as to Plaintiff’s First Amended Complaint asserting negligence, premises liability and products liability(negligence) claims against Welltower. The elements of negligence are: “(1) a legal duty to use due care; (2) a breach of such legal duty; [and] (3) the breach as the proximate or legal cause of the resulting injury.” (<i>Ladd v. County of San Mateo</i> (1996) 12 Cal.4th 913, 917.) The elements of premises liability are: (1) Defendant owned/leased/occupied/controlled the property, (2) Defendant was negligent in the use or maintenance of the property, (3) Cross-Complainant was harmed, and (4) Defendant’s negligence was a substantial factor in causing Cross-Complainant’s harm. (CACI 1000; <i>Hall v. Aurora Loan Services, LLC</i> (2013) 215 Cal.App.4th 1134, 1139. (“The same concepts of duty applicable to general negligence claims apply to premises liability claims.”).) “The existence and scope of duty are legal questions for the court.” (<i>Annocki v. Peterson Enterprises, LLC</i> (2014) 232 Cal.App.4th 32, 36 [citing <i>Merrill v. Navegar, Inc.</i> (2001) 26 Cal.4th 465, 477].) “Liability founded upon a claim of negligence cannot exist unless a duty of care is owed by the alleged wrongdoer to the person injured or to the class of which the injured person is a member. [Citations.]” (<i>Steinmetz v. Stockton City Chamber of Commerce</i> (1985) 169 Cal.App.3d 1142, 1145 [citing <i>Gomez v. Ticor</i> (1983) 145 Cal.App.3d 622, 627.] Defendant’s moving papers are based on the lease agreement between it and Mission

Hospital. Defendant contends that the lease gives control of the leased premises to the Hospital and obligates the Hospital to maintain and repair the premises. (UMF 10, 11; See Lease, Section 7).

Plaintiff's accident occurred within the premises leased and controlled by her employer. (UMF No. 12). Defendant states that at the time of Plaintiff's incident, it did not have control over and did not have maintenance duties over the premises where Plaintiff's incident occurred. Rather, Plaintiff's employer did. (UMF No. 13). The window blinds that Plaintiff claims caused her alleged injuries were located within the premises of her employer. (UMF No. 14).

Defendant thus contends that it owed no duty of care to Plaintiff because it did not control the subject premises, nor was it responsible for the maintenance or repair of the window blinds.

Defendant does not meet its burden of proof in moving for summary judgment. There is more to establishing the duty element of Plaintiff's negligence and premises liability claims than showing control or an undertaking to maintain/repair.

"A defendant cannot be held liable for the defective or dangerous condition of property which it did not own, possess, or control. Where the absence of ownership, possession, or control has been unequivocally established, summary judgment is proper." (*Isaacs v. Huntington Memorial Hospital* (1985) 38 Cal.3d 112, 134 [emphasis added]; see also *Donnell v. California Western School of Law* (1988) 200 Cal.App.3d 715, 725–726 ("premises liability is based on ownership, possession or control.").)

Defendant's own cited authorities somewhat undercut its arguments. (See *Gray v. America West Airlines, Inc.*, (1989) 209 Cal.App.3d 76, 81 ("[i]n premises liability cases, summary judgment may properly be granted where a defendant unequivocally establishes its lack of ownership, possession, or control of the property alleged to be in a dangerous or defective condition."); *Preston v. Goldman* (1986) 42 Cal.3d 108, 119 ("we have continued to treat ownership and control as a fundamental requirement for ascribing liability.").)

Defendant owns the property. Ownership is one way to support a duty of care. (See Civ. Code, § 1714(a) ("Everyone is responsible, not only for the result of his or her willful acts, but also for an injury occasioned to another by his or her want of ordinary care or skill in the management of his or her property or person...").)

Defendant does not address this in its moving papers or provide evidence to establish that Plaintiff cannot somehow prove Defendant was negligent in the ownership or management of the property, e.g., that Defendant did not install, approve, inspect, own the window shade assembly.

Indeed, Subsection 7(b) of the Lease, entitled "Landlord Obligations," provides that "Welltower remains responsible for repairs and replacements involving the foundation, structural elements of the premises, and "all other components of the Landlord Work," where such repairs are required as a result of defects in the initial construction performed by Landlord or its agents. (Plaintiff's AMF 9.)

In reply, Defendant submits additional evidence, seeming to recognize that its moving papers are deficient. ("Moreover, any claimed deficiency in Welltower's original evidentiary showing is cured by the supplemental evidence submitted herewith." (Reply at pg. 3:12-13).) Defendant states that it "may submit additional evidence in reply to address

gaps identified by the opposition.” (Reply at 3:13-14.)

Defendant is wrong.

Code Civ. Proc., § 437c(b)(4) is very clear: “The reply shall not include any new evidentiary matter, additional material facts, or separate statement submitted with the reply and not presented in the moving papers or opposing papers.”

Welltower additionally argues in its Reply that Plaintiff’s claims are barred by the workers compensation exclusivity doctrine. Not only did Welltower fail to argue this in its moving papers, but again, Defendant is wrong.

The workers compensation exclusivity rule applies to shield Plaintiff’s employer – Mission Hospital – from liability to Plaintiff. It does not apply to third parties like Welltower in this situation. (See *Soil Engineering Construction, Inc. v. Sup. Ct.* (1982) 136 Cal.App.3d 329, 332 (“The superior court may not entertain an action for damages against the employer” when workers’ compensation law applies) [emphasis added].)

Accordingly, because Welltower fails to meet its burden in moving for summary judgment, the motion is denied. There are triable issues of material fact as to whether Welltower owed a duty to Plaintiff and breached that duty.

Plaintiff shall give notice.

(2) MOTION FOR SUMMARY JUDGMENT

Cross-Defendant Mission Hospital Regional Medical Center’s (“Mission”) motion for summary judgment as to Cross-Complainant Welltower Mission Viejo Medical Center JV, LLC’s (“Welltower”) First Amended Cross-Complaint (“FACC”) is denied.

Mission moves for summary judgment as to Welltower’s First Amended Cross-Complaint which states causes of action for (1) implied indemnity, (2) express indemnity, (3) contribution, and (4) declaratory relief. (ROA 104.)

Mission fails to address the express indemnity cause of action in its moving papers.

Mission’s Lease agreement with Welltower provides:

Tenant will hold harmless and indemnify and defend Landlord [...] against any and all losses, damages, liabilities, deficiencies, claims, actions, judgments, settlements, interest, awards, penalties, fines, costs, or expenses of whatever kind, including attorneys' fees [...], arising out of any [...] claims and losses of third parties for property damage, bodily injury, illness, death, and/or personal injury occurring on or about the Premises, or alleged to be caused in whole or in part by Tenant's operations at the Premises.

(FACC, ¶ 11.)

“In an express indemnity agreement, the parties may agree to results which would not occur in the absence of an express agreement for reasons other than equally or “fairly” apportioning loss.” (*Smoketree-Lake Murray, Ltd. v. Mills Concrete Construction Co.* (1991) 234 Cal.App.3d 1724, 1737.)

		“Express indemnity generally is not subject to equitable considerations or a joint legal obligation to the injured party; rather, it is enforced in accordance with the terms of the contracting parties' agreement... [i]n this sense, express indemnity allows contracting parties ‘great freedom to allocate [indemnification] responsibilities as they see fit,’ and to agree to ‘protections beyond those afforded by the doctrines of implied or equitable indemnity.’” (<i>Prince v. Pacific Gas & Electric Co.</i> (2009) 45 Cal.4th 1151, 1158 [internal citations omitted].) Mission argues that Welltower is not liable to Plaintiff, and also that Mission is not liable to Plaintiff (due to the workers’ compensation exclusivity doctrine). However, Welltower’s claim for express indemnity is not conditioned upon Mission (or Welltower) ultimately being found liable. Because of this, the motion for summary judgment is denied as there is a triable issue of fact concerning the application of the express indemnity agreement between the parties. Cross-Complainant Welltower Mission Viejo Medical Center JV, LLC shall give notice.
108	2023-01320118 West vs. Zacky	1. Motion for Sanctions 2. Motion to Disqualify Attorney of Record No tentative ruling issued.
109	2025-01534663 Beyene vs. Pavia	1. Motion to Quash Service of Summons 2. Case Management Conference Specially-appearing defendant Sigma Pi Fraternity International, Inc.’s (“SPFI”) Motion to Quash Service of Summons and Compliant is granted. Plaintiffs’ unopposed request for judicial notice is granted. The Court notes that the hearing on this motion was continued to allow Plaintiffs an opportunity to conduct jurisdictional discovery and to provide the parties with an opportunity to file supplemental briefing. (ROA 70.) The Court, having taken into account the original briefing, the supplemental briefing, and the evidence presented therewith, finds that the motion should be granted. This action arises from the tragic death of Simon Daniel. His mother brings this action for wrongful death and survival on behalf of Daniel’s estate and on her own behalf. (ROA 10.) Daniel is alleged to have “died as a result of a hazing incident on May 17, 2025,” during which time he was a “resident of the State of California.” (FAC at ¶ 5.) Daniel is alleged to have boarded a boat, while at Lake Havasu in Arizona, with other members of CSUF’s Sigma Pi Fraternity, Epsilon Nu Chapter. Daniel was allegedly prevented from re-entering the boat “as a part of a hazing ritual,” which forced him to “stay in the water for an unreasonable amount of time,” and resulted in his drowning and death. (FAC at ¶¶ 19-25.) SPFI is alleged to be the national organization of which Sigma Pi was a local chapter, which “controls and monitors the day-to-day activities of its local chapter, Sigma Pi.” (FAC at ¶¶ 20-21.) Defendants are alleged to have “directed, encouraged, authorized, ratified, and/or contributed to the hazing that occurred on the day of the incident,” and to have “negligently organized, managed, supervised, advertised, and trained in connection with the boat trip which resulted in the death of” Daniel. (FAC at ¶¶ 26-27.) Presently, SPFI specially appears and moves under CCP sections 410.10 and 418.10(a)(1)

for an order quashing service of the summons and FAC. SPFI contends the Court lacks personal jurisdiction over it, because it is “a Tennessee-based nonprofit corporation whose alleged California connections consist only of having an affiliated local chapter at Cal State and vague, conclusory assertions about ‘training’ and ‘control’ over chapter activities.” (ROA 34 [Mot. at p. 6].)

Legal Standard

A defendant may move to quash service of summons, under CCP section 418.10, subdivision (a)(1), on the ground that the court lacks jurisdiction over defendant. (Code Civ. Proc. § 418.10, subd. (a)(1).) “Where a nonresident defendant challenges jurisdiction by way of a motion to quash, the plaintiff bears the burden of establishing by a preponderance of the evidence that minimum contacts exist between the defendant and the forum state to justify imposition of personal jurisdiction.” (*Elkman v. National States Ins. Co.* (2009) 173 Cal.App.4th 1305, 1312-1313.) The plaintiff must present facts “demonstrating that the conduct of defendants related to the pleaded causes of action is such as to constitute constitutionally cognizable ‘minimum contacts.’” (*Id.* at 1313, internal citation omitted.) If there is no conflict in the evidence, “the question of jurisdiction is purely one of law.” (*Snowney v. Harrah’s Entertainment, Inc.* (2005) 35 Cal.4th 1054, 1062.)

Each individual has a liberty interest in not being subject to the judgments of a forum with which he or she has established no meaningful minimum “contacts, ties or relations.” (*Burger King Corp. v. Rudzewicz* (1985) 471 U.S. 462, 471-472.) As a matter of fairness, a defendant should not be “haled into a jurisdiction solely as the result of ‘random,’ ‘fortuitous,’ or ‘attenuated’ contacts.” (*Id.* at 475.) California’s long-arm statute authorizes California courts to “exercise jurisdiction on any basis not inconsistent with the Constitution of this state or of the United States.” (Code Civ. Proc. § 410.10.) A state court’s assertion of personal jurisdiction over a nonresident defendant who has not been served with process within the state comports with the requirements of the due process clause of the federal Constitution if the defendant has such minimum contacts with the state that the assertion of jurisdiction does not violate “ ‘traditional notions of fair play and substantial justice.’ ” (*Int’l Shoe Co. v. Washington* (1945) 326 U.S. 310, 316.)

Personal jurisdiction may be either general or specific.

No General Jurisdiction

“A state court may exercise general jurisdiction only when a defendant is ‘essentially at home’ in the State. (*Ford Motor Company v. Montana Eighth Judicial District Court* (2021) 592 U.S. 351, 358.) “For a corporation, its domicile, place of incorporation, and/or principal place of business within a state constitute the paradigm bases for establishing general jurisdiction.” (*Strasner v. Touchstone Wireless Repair & Logistics, LP* (2016) 5 Cal.App.5th 215, 222, citing *Goodyear Dunlop Tires Operations, S.A. v. Brown* (2011) 564 U.S. 915, 924.)

Here, SPFI contends it is not subject to general jurisdiction, because it is: “incorporated in Indiana”; “has its principal place of business in Smyrna, Tennessee”; and, “does not maintain any offices or retail locations, nor has any employees, in California.” (Mot. at p. 8.) These statements are supported by the affidavit of Gregory Ritchie, SPFI’s Interim Chief Executive Officer. (Ritchie Aff. at ¶¶ 2, 4.)

Although Plaintiffs oppose the motion, their opposition does not address SPFI’s argument that it is not subject to general jurisdiction in California. Rather, the argument in the opposition re: jurisdiction is limited to arguing specific jurisdiction. (See Opp’n at pp. 5-7.) Because Plaintiffs do not dispute that California is not SPFI’s domicile, place of incorporation, or principal place of business, the Court finds they have not met their

burden of showing that SPFI is subject to general jurisdiction in California.

Specific Jurisdiction

If the nonresident defendant does not have substantial and systematic contacts in the forum sufficient to establish general jurisdiction, the nonresident defendant still may be subject to the specific jurisdiction of the forum, if: “(1) ‘the defendant has purposefully availed himself or herself of forum benefits’ [citation]; (2) ‘the “controversy is related to or ‘arises out of’ [the] defendant’s contact with the forum” ‘ [citations]; and (3) ‘ “the assertion of personal jurisdiction would comport with ‘fair play and substantial justice.’” (Pavlovich v. Superior Court (2002) 29 Cal.4th 262, 268, abrogated on another ground as stated in David L. v. Superior Court (2018) 29 Cal.App.5th 359, 369–370, 373.)

The first factor, purposeful availment, “focuses on the defendant’s intentionality. [Citation.] This prong is only satisfied when the defendant purposefully and voluntarily directs his activities toward the forum so that he should expect, by virtue of the benefit he receives, to be subject to the court’s jurisdiction based on” his contacts with the forum.” This requirement “ensures that a defendant will not be haled into a jurisdiction solely as a result of ‘random,’ ‘fortuitous,’ or ‘attenuated’ contacts [citations], or of the ‘unilateral activity of another party or a third person.’ [Citations.]” A defendant purposefully avails itself of the privilege of conducting activities within the forum state when “it has clear notice that it is subject to suit there, and can act to alleviate the risk of burdensome litigation by procuring insurance, passing the expected costs on to customers, or, if the risks are too great, severing its connection with the State.” (*Id.* at p. 269, internal citations omitted.)

Secondly, “there must be a substantial connection between the dispute and the defendant’s forum activities.” (*Anglo Irish Bank Corp., PLC v. Superior Court* (2008) 165 Cal.App.4th 969, 985.) “In other words, there must be ‘an affiliation between the forum and the underlying controversy, principally, [an] activity or an occurrence that takes place in the forum State and is therefore subject to the State’s regulation.’” (*Bristol-Myers Squibb Co. v. Superior Court of California, San Francisco County* (2017) 582 U.S. 255, 262, citation omitted.) This element (sometimes referred to as “relatedness” or “forum-relatedness”) requires a showing of “a connection between the plaintiff’s claims and the nonresident defendant’s forum activities.” (*LG Chem, Ltd. v. Superior Court of San Diego County* (2022) 80 Cal.App.5th 348, 364.) It is an “intensely fact-specific” inquiry that is not “susceptible of mechanical application.” (*Rivelli v. Hemm* (2021) 67 Cal.App.5th 380, 392.)

The Court finds there is sufficient evidence that the purposeful availment inquiry has been satisfied. Although SPFI repeatedly describes the relationship between itself and the local CSUF chapter as being “passive,” SPFI’s granting of a charter to the local chapter at CSUF is not a “passive” act. The local chapter could not have “unilaterally” established a charter relationship with SPFI; rather, SPFI had to take the intentional act of forming the relationship by granting the charter. Consequently, by granting the charter, SPFI intended to allow the local chapter to operate in the State of California. Further, because the local chapter operates by recruiting members from which SPFI admits it receives dues, fees, or other payments, SPFI should expect that it may be subject to the jurisdiction of California courts by virtue of the benefits it receives from granting charters to local chapters in California. Thus, the Court concludes that the purposeful availment inquiry has been satisfied.

However, even if SPFI purposely availed itself of the benefits of granting charters to local chapters in California, the Court must also find that the “relatedness” inquiry has been satisfied. As explained, below, the Court finds Plaintiffs have not met their burden of

		proving relatedness is present through the presentation of “competent evidence of jurisdictional facts.” (<i>LG Chem, Ltd. v. Superior Court of San Diego County</i> (2022) 80 Cal.App.5th 348, 365.) As described, above, Plaintiffs allege in the FAC that SPFI is liable for the wrongful death of the Decedent because of the “hazing ritual” that occurred in Lake Havasu, Arizona. The Defendants allegedly “directed, encouraged, authorized, ratified, and/or contributed to the hazing that occurred on the day of the incident” and “negligently organized, managed, supervised, advertised, and trained in connection with the boat trip which resulted in the death of [Decedent].” (FAC at ¶¶ 26-27.) Nevertheless, Plaintiffs have not proffered any evidence that SPFI, beyond granting a charter to the CSUF chapter, had anything to do with the “hazing” incident, which gives rise to Plaintiffs’ wrongful death and survival claims. The allegations in Plaintiffs’ pleading are not evidence that the Court considers in ruling on this motion. (<i>Rivelli v. Hemm</i> (2021) 67 Cal.App.5th 380, 393 [“To meet this burden, a plaintiff must do more than make allegations.... Allegations in an unverified complaint are insufficient to satisfy this burden of proof.”].) Although relatedness is an “intensely fact-specific inquiry,” the Court finds the record does not bear resemblance to cases where the relatedness inquiry has been satisfied. (See, e.g., <i>Hirsch v. Blue Cross, Blue Shield of Kansas City</i> (9th Cir. 1986) 800 F.2d 1474, 1480 [breach of contract claim was forum-related by virtue of the parties having entered into the contract]; <i>In re Fuel Industry Climate Cases</i> (2026) 117 Cal.App.5th 882, 894 [relatedness inquiry satisfied where the evidence showed the company was “directly involved in distributing fossil fuel products to California consumers,” even if it did not sell the gasoline directly to the consumers, and product liability claims were based on the distribution of the gasoline]; <i>People ex rel. Harris v. Native Wholesale Supply Co.</i> (2011) 196 Cal.App.4th 357, 365 [relatedness requirement was readily met where the State is alleging the non-resident cigarette distributor is violating state law by distributing the cigarettes to the California public]; <i>SK Trading International Co. Ltd. v. Superior Court of San Francisco County</i> (2022) 77 Cal.App.5th 378, 390 [relatedness requirement satisfied where evidence showed that officers of oil and gas firm were directly involved in the formulation of the policies that the complaint alleges constituted an anticompetitive scheme].) Unlike in those cases, here, it would be a leap to say there is a connection between SPFI’s connection with California and the <i>specific</i> claims at issue. Plaintiffs are not alleging any claims based on SPFI’s granting of a charter to the CSUF chapter, or any claims relating to its collection of dues. Rather, Plaintiffs claims specifically arise from the events surrounding the hazing incident in Lake Havasu. Despite being given an opportunity to conduct jurisdictional discovery, Plaintiffs have not proffered any evidence that there was any direct conduct by SPFI that led to the tragic events of that day. Aside from showing that SPFI granted a charter to the local chapter, that SPFI issued policies and guidelines re: hazing, and that SPFI could discipline a chapter by revoking its charter, there is no evidence that SPFI urged, fostered, or encouraged the event at Lake Havasu, much less the alleged hazing incident that took place that day. As such, Court grants the motion to quash and quashes the service of the summons and the FAC served on SPFI. The case management conference is continued to November 2, 2026 at 2:00 p.m. in Department C27. SPFI is ordered to give notice of the ruling.
111	2024-01401763	1. Demurrer to Amended Complaint

	Rosette vs. Uppal	2. Demurrer to Amended Cross-Complaint 3. Motion to Strike – Anti-SLAPP 4. Motion to Strike Portions of Cross-Complaint 5. Case Management Conference Continued to August 26, 2026 at 1:30 p.m. in Department C27.
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